

DATA SHARING AGREEMENT

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THIS AGREEMENT is made on (insert date) (the “Commencement Date”)

BETWEEN:

(1)	(Full legal name of Organization A), a (type of entity) incorporated/established under the laws of (jurisdiction), with its registered office / principal address at (address) (“Party A”); and
(2)	(Full legal name of Organization B), a (type of entity) incorporated/established under the laws of (jurisdiction), with its registered office / principal address at (address) (“Party B”),

each a “Party” and together the “Parties”.

Nominated Representatives and Contacts

	Party A	Party B
Principal Investigator	(Name, title, email, phone)	(Name, title, email, phone)
Data Protection Officer / privacy contact	(Name, email, phone)	(Name, email, phone)
Notice address (Section 18)	(Address)	(Address)
Personal data breach contact	(Name, 24-hour contact)	(Name, 24-hour contact)

BACKGROUND

- A.** Party A (holds / has access to / generates) certain personal data in connection with (describe the underlying activity, service, study, or programme).
- B.** Party B has requested and Party A has agreed to share such data with Party B (or vice versa, or on a mutual basis) for the purpose(s) described in Section 2 and Schedule 1.
- C.** The Parties wish to record the terms on which the data will be shared, including the safeguards each Party will apply to comply with their respective obligations under Data Protection Legislation and to protect the interests of the individuals to whom the data relates.
- D.** The Parties have determined and recorded in Section 4 the capacity in which each Party processes the Shared Data (as independent controllers, or as controller and processor).

NOW IT IS AGREED as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement, unless the context requires otherwise, the following terms have the meanings set out below:

Term	Definition
Agreement	This Data Sharing Agreement includes its Recitals and Schedules, as amended, extended, or novated from time to time in accordance with Section 18.
Business Day	A day other than a Saturday, Sunday, or public holiday on which banks are open for general business in (insert relevant jurisdiction(s)).
Commencement Date	The date of the last signature to this Agreement as recorded on the signature page.
Confidential Information	Any non-public information disclosed by one Party to the other in connection with this Agreement, whether disclosed orally, in writing, or in any other form, including the Shared Data, together with any related know-how, methodologies, or business information, but excluding information falling within the exceptions in Section 7.3.
Data Protection Legislation	All applicable laws and regulations relating to the processing of personal data and privacy, including, as applicable to the Parties: Country Data Protection laws/regulations/acts etc. and any other data protection or privacy legislation applicable to a Party in the jurisdiction(s) in which it operates (insert, e.g., relevant Country privacy laws), in each case as amended, re-enacted, or replaced from time to time.
Data Subject	An identified or identifiable natural person to whom Personal Data relates.
Data Subject Request	A request, notice, or complaint made by or on behalf of a Data Subject exercising rights under Data Protection Legislation.
Personal Data	Has the meaning given in the applicable Data Protection Legislation, and for the purposes of this Agreement means any Personal Data forming part of the Shared Data.
Personal Data Breach	A breach of security leading to accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, Shared Data.
Processing / Process / Processed	Has the meaning given in the applicable Data Protection Legislation and includes any operation or set of operations performed on Personal Data, whether or not by automated means.
Purpose	The purpose(s) for which the Shared Data is shared between the Parties, as described in Section 2 and Schedule 1.
Regulatory Authority	The supervisory authority or other competent public body responsible for the enforcement of Data Protection Legislation in respect of a Party (for example, a national Data Protection Authority or the UK Information Commissioner's Office).

Term	Definition
Sensitive Personal Data / Special Category Data	Personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, trade union membership, genetic data, biometric data used for identification purposes, health data, or data concerning a person's sex life or sexual orientation, and any equivalent category of data under applicable Data Protection Legislation (including data concerning criminal convictions and offences).
Shared Data	The Personal Data described in Schedule 1 (Description of the Shared Data) that is shared between the Parties under this Agreement, together with any copies, extracts, or derivatives of it retained by a Party.
Sub-processor	Any third party engaged by a Party to Process Shared Data on that Party's behalf, as further described in Section 13 and Schedule 3.
Technical and Organisational Measures / TOMs	The security measures described in Schedule 2 (Technical and Organizational Security Measures).
Term	The period during which this Agreement is in effect, as set out in Section 16.

- 1.2** The terms "Controller", "Processor", and "Data Subject" have the meanings given in the applicable Data Protection Legislation.
- 1.3** References to a statute or statutory provision include that statute or provision as amended, extended, consolidated, or re-enacted from time to time, and any subordinate legislation made under it. Headings are for convenience only and do not affect interpretation. Where this Agreement is construed as if drafted jointly by the Parties, no presumption or burden of proof shall arise favoring or disfavoring either Party by virtue of authorship of any provision.

2. PURPOSE AND DESCRIPTION OF THE DATA SHARING

- 2.1** The Parties wish to share the Shared Data described in Schedule 1 (Description of the Shared Data) for the following purpose(s): (insert a plain-language description of why the data is being shared e.g., to facilitate referral and follow-up of patients between a health facility and a community partner; to enable joint research analysis; to support service coordination).
- 2.2** The Shared Data shall be used only for the Purpose and shall not be further processed by either Party in a manner that is incompatible with the Purpose, except with the prior written consent of the Party that supplied the data or as otherwise required by law.
- 2.3** A summary description of the categories of Shared Data, the categories of Data Subjects, and the specific processing purposes is set out in Schedule 1. The Parties shall keep Schedule 1 up to date and shall not expand the scope of the Shared Data or the Purpose without agreeing to a written amendment under Section 18.2.

3. LEGAL BASIS FOR PROCESSING

- 3.1** Each Party shall independently identify, document, and be able to demonstrate the legal basis under Data Protection Legislation that permits it to Process the Shared Data for the Purpose, including, where the Shared Data includes Sensitive Personal Data, an applicable condition for processing such data. The legal basis relied on by each Party is recorded in Schedule 1.
- 3.2** Where a Party's processing is based on the consent of the Data Subject, that Party shall ensure the consent is freely given, specific, informed, and unambiguous, and shall retain evidence of that consent for as long as required by Data Protection Legislation and shall make it available to the other Party on reasonable request.
- 3.3** Each Party shall ensure that its privacy notice(s) accurately describe the data sharing under this Agreement, including the identity of the other Party (or categories of recipient) and the Purpose, before the Shared Data is first transferred.

4. ROLES AND RESPONSIBILITIES OF THE PARTIES

OPTION A Independent Controllers (when both Parties determine their own purposes for the Shared Data)

- 4A.1** Each Party is an independent, separate Controller with respect to the Shared Data. Neither Party acts as a joint controller with, nor as a processor for, the other Party, and nothing in this Agreement shall be construed as creating a joint controller relationship or a controller-processor relationship between the Parties.
- 4A.2** Each Party is individually and separately responsible for complying with its own obligations under Data Protection Legislation in respect of the Shared Data it Processes, including (without limitation) the obligations summarized in Schedule 4 (Data Protection Responsibilities Matrix).
- 4A.3** Each Party shall cooperate with, and provide reasonable assistance to, the other Party so far as necessary to enable that other Party to comply with its own obligations under Data Protection Legislation.
- 4A.4** Neither Party warrants to the other that any use of the Shared Data outside the scope of this Agreement by the receiving Party will be compliant with Data Protection Legislation; each Party remains responsible for its own compliance.

OPTION B Controller and Processor (when one Party processes the Shared Data solely on the other's documented instructions)

- 4B.1** (Party A / Party B) is the Controller and (Party A / Party B) is the Processor in respect of the Shared Data Processed under this Agreement. The Processor shall Process the Shared Data only:
 - (a)** on the documented instructions of the Controller (including regarding transfers of Shared Data to a third country), unless required to do otherwise by law, in which case the

Processor shall inform the Controller of that legal requirement before Processing, unless the law prohibits this;

(b) for the Purpose and for no other purpose; and

(c) for the duration set out in Schedule 1.

4B.2 The Processor shall:

(a) ensure that people authorized to Process the Shared Data have committed themselves to confidentiality or are under an appropriate statutory obligation of confidentiality;

(b) implement the Technical and Organizational Measures set out in Schedule 2;

(c) not engage another processor (Sub-processor) without the prior written authorization of the Controller, in accordance with Section 13;

(d) taking into account the nature of the Processing, assist the Controller by appropriate technical and organizational measures, so far as possible, in responding to Data Subject Requests, in accordance with Section 11;

(e) assist the Controller in ensuring compliance with its obligations relating to security of processing, Personal Data Breach notification, and data protection impact assessments, taking into account the information available to the Processor;

(f) at the Controller's election, delete or return all Shared Data to the Controller after the end of the provision of services relating to Processing, and delete existing copies unless applicable law requires storage, in accordance with Section 9;

(g) make available to the Controller all information necessary to demonstrate compliance with this Section 4B and Data Protection Legislation, and allow for and contribute to audits, including inspections conducted by the Controller or an auditor mandated by the Controller, on reasonable notice; and

(h) notify the Controller without undue delay if, in the Processor's opinion, an instruction from the Controller infringes Data Protection Legislation.

4B.3 The Controller shall ensure that it has a valid legal basis to disclose the Shared Data to the Processor and that its privacy notices are sufficient to cover the Processing carried out under this Agreement.

5. METHOD AND SECURITY OF DATA TRANSFER

5.1 The Shared Data shall be transferred using the secure method(s) set out in Schedule 1, which shall be appropriate to the sensitivity of, and risk associated with, the Shared Data. Acceptable methods include, for example: an encrypted file transfer or secure API; upload to an access-controlled shared platform; or a password-protected file sent by email with the password communicated through a separate channel. Shared Data shall not be sent by unencrypted email or left in a location accessible to unauthorized people.

- 5.2** The frequency, format, and volume of each transfer shall be as set out in Schedule 1, and shall be limited to what is adequate, relevant, and necessary for the Purpose.
- 5.3** Each Party shall ensure that access to the Shared Data is limited to those of its employees, contractors, and agents who need access for the Purpose (need-to-know basis), and that such individuals are aware of, and comply with, the confidentiality and security obligations in this Agreement.

6. DATA QUALITY

- 6.1** Each Party is responsible for the accuracy, quality, and currency of the Shared Data it provides to the other Party.
- 6.2** Where a Party becomes aware that any Shared Data is inaccurate, incomplete, or out of date, it shall notify the other Party without undue delay. The Party that originally supplied the data shall take reasonable steps to correct or update it and shall notify the other Party once the correction has been made.

7. CONFIDENTIALITY

- 7.1** Each Party (as “Receiving Party”) shall keep confidential all Confidential Information received from the other Party (as “Disclosing Party”) and shall not disclose it to any third party except:
- (a)** to its employees, contractors, and professional advisers who need to know it for the Purpose and who are bound by confidentiality obligations no less protective than those in this Section 7;
 - (b)** with the prior written consent of the Disclosing Party; or
 - (c)** required by law, regulation, or a competent court or Regulatory Authority, subject to Section 7.2.
- 7.2** Where a Receiving Party is required by law to disclose Confidential Information, it shall, unless prohibited by law, notify the Disclosing Party before doing so (or as soon as reasonably possible thereafter) and shall cooperate, at the Disclosing Party’s reasonable cost, with any lawful steps the Disclosing Party wishes to take to challenge, limit, or delay the disclosure.
- 7.3** The obligations in this Section 7 do not apply to information that the Receiving Party can demonstrate: was already lawfully in its possession without obligations of confidence; is or becomes publicly available through no fault of the Receiving Party; is independently developed without reference to the Confidential Information; or is lawfully received from a third party without restriction.
- 7.4** The obligations of confidentiality in this Section 7 shall survive termination or expiry of this Agreement for a period of (five (5)) years, save that obligations relating specifically to the Shared Data shall continue for as long as either Party retains any Shared Data.

8. SECURITY MEASURES

- 8.1** Each Party shall implement and maintain appropriate technical and organizational measures to protect the Shared Data against accidental or unlawful destruction, loss, alteration, unauthorized disclosure, or access, taking into account the state of the art, the cost of implementation, and the nature, scope, context, and risk of the Processing. As a minimum, each Party shall implement the measures described in Schedule 2 (Technical and Organisational Security Measures).
- 8.2** Each Party shall ensure that personnel with access to the Shared Data: (a) are subject to a duty of confidentiality (whether contractual or statutory); and (b) have received data protection and information security training appropriate to their role before being given access to the Shared Data.
- 8.3** Each Party shall periodically test, assess, and evaluate the effectiveness of its technical and organizational measures and shall promptly remediate any material weaknesses identified.
- 8.4** On reasonable written request, and no more than once per year (save where required following a Personal Data Breach or a material change in circumstances), a Party shall provide the other Party with reasonable evidence of its compliance with this Section 8, such as a summary of relevant policies or a completed security questionnaire.

9. DATA RETENTION AND DISPOSAL

- 9.1** Neither Party shall retain the Shared Data for longer than is necessary for the Purpose, and in any event no longer than the retention period(s) set out in Schedule 1.
- 9.2** On expiry of the applicable retention period, or on termination or expiry of this Agreement (whichever is earlier), and subject to Section 9.3, each Party shall securely destroy, or, where instructed by the other Party, return, the Shared Data in its possession or control, using methods appropriate to the format in which it is held, including:
 - (a)** secure electronic deletion (including from backups within a reasonable period) or cryptographic erasure of Shared Data held in electronic form;
 - (b)** shredding, pulping, or incineration of Shared Data held on paper; and
 - (c)** degaussing or physical destruction (shredding, crushing, or incineration) of any physical media on which Shared Data is stored that is being retired or repurposed.
- 9.3** A Party may retain a copy of the Shared Data beyond the retention period set out in Schedule 1 only to the extent, and for as long as, required: by law; to establish, exercise, or defend legal claims; or as otherwise agreed by the Parties in writing, and any Shared Data so retained shall remain subject to the confidentiality and security obligations of this Agreement.
- 9.4** On request, a Party shall confirm in writing to the other Party that Shared Data has been destroyed or returned in accordance with this Section 9.

10. INTERNATIONAL DATA TRANSFERS

- 10.1** Neither Party shall transfer the Shared Data to a country or territory outside (insert relevant region) unless one of the following applies:
- (a) the destination country or territory benefits from a valid adequacy decision or equivalent recognition under Data Protection Legislation;
 - (b) an appropriate safeguard recognized under Data Protection Legislation has been put in place (for example, Standard Contractual Clauses, an International Data Transfer Agreement or Addendum, or binding corporate rules), together with any transfer risk assessment required by applicable law; or
 - (c) a specific derogation under Data Protection Legislation applies to the transfer (for example, explicit consent, or a one-off transfer necessary for important reasons of public interest).
- 10.2** The Party making the transfer shall bear the burden of demonstrating that it is lawful under this Section 10 and shall provide the other Party with evidence of the safeguard relied upon on reasonable request.

11. DATA SUBJECT RIGHTS

- 11.1** Each Party shall maintain its own procedures to enable Data Subjects to exercise their rights under Data Protection Legislation (including rights of access, rectification, erasure, restriction of processing, data portability, and objection) in respect of the Shared Data it holds.
- 11.2** If a Party receives a Data Subject Request, complaint, or other communication from a Regulatory Authority that relates to Shared Data provided by the other Party, it shall notify the other Party without undue delay and in any event within (five (5)) Business Days of becoming aware of it.
- 11.3** The Parties shall provide each other with reasonable cooperation and assistance to enable each to respond to a Data Subject Request or Regulatory Authority communication within the time limits required by Data Protection Legislation.
- 11.4** Neither Party shall disclose Shared Data in response to a Data Subject Request or Regulatory Authority communication that concerns data provided by the other Party without first consulting that other Party, except where required by law or where consultation is not reasonably practicable in the time available.

12. PERSONAL DATA BREACH NOTIFICATION

- 12.1** Each Party shall implement appropriate measures to detect, respond to, contain, and recover from a Personal Data Breach affecting the Shared Data.

- 12.2** On becoming aware of an actual or reasonably suspected Personal Data Breach affecting the Shared Data, a Party shall, without undue delay and in any event within (twenty-four (24) / forty-eight (48)) hours of becoming aware of it:
- (a) notify the other Party's designated breach contact (Schedule 1), providing such details as are then available of the nature of the breach, the categories and approximate number of Data Subjects and records concerned, the likely consequences, and the measures taken or proposed to address the breach and mitigate its effects;
 - (b) take reasonable steps to contain, investigate, and remedy the breach; and
 - (c) keep the other Party updated as further information becomes available, providing information in phases where it is not all available at once.
- 12.3** Each Party remains individually responsible for assessing whether it is required to notify a Regulatory Authority and/or affected Data Subjects of a Personal Data Breach in its own capacity as a Controller. The Parties shall, so far as reasonably practicable, consult and cooperate with each other before making any such notification that concerns the other Party's Shared Data or Data Subjects.
- 12.4** Each Party shall maintain a record of any Personal Data Breach affecting the Shared Data, including its effects and the remedial action taken, and shall make that record available to the other Party on reasonable request.

13. SUB-PROCESSING

- 13.1** Where a Party is acting as a Processor under Section 4B, that Party shall not engage any Sub-processor to Process the Shared Data without the Controller's prior (general / specific) written authorization. Sub-processors authorized as of the Commencement Date are listed in Schedule 3.
- 13.2** Where general written authorization has been given, the Processor shall inform the Controller of any intended addition or replacement of Sub-processors, giving the Controller a reasonable opportunity (of no less than (14) days) to object on reasonable grounds relating to the protection of the Shared Data.
- 13.3** The Processor shall enter into a written contract with each Sub-processor imposing data protection obligations that are no less protective of the Shared Data than those set out in this Agreement and shall remain fully liable to the Controller for the acts and omissions of its Sub-processors as if they were its own.
- 13.4** Where both Parties act as independent controllers under Section 4A, each Party shall ensure that any third-party processor it engages to Process the Shared Data does so under a written contract that satisfies the requirements of Data Protection Legislation applicable to processor arrangements.

14. PUBLICATION AND INTELLECTUAL PROPERTY

- 14.1** Any intellectual property owned by, or licensed to, a Party before the Commencement Date (“Background IP”) shall remain the property of that Party. Nothing in this Agreement transfers or licenses Background IP except to the extent necessary to give effect to this Agreement.
- 14.2** Any new intellectual property arising from the use of the Shared Data (“Foreground IP”) shall belong to the Party that creates it, save that where Foreground IP is jointly created, the Parties shall negotiate in good faith a separate agreement governing its ownership and exploitation; until such agreement is reached, each Party may use the joint Foreground IP for its own internal research and teaching purposes only.
- 14.3** A Party intending to publish or otherwise publicly disclose results, data, or findings derived from the Shared Data shall provide the other Party with a copy of the proposed publication or disclosure at least (thirty (30)) days in advance (or (fifteen (15)) days for a conference abstract) for review. Such review is solely to allow the other Party to: (a) identify and request removal of its Confidential Information; and (b) request a delay of up to (ninety (90)) days where necessary to protect its intellectual property rights. Review rights under this Section 14.3 shall not be used to unreasonably withhold or delay publication.
- 14.4** Any publication arising from the Shared Data shall appropriately acknowledge the contribution of the Party that supplied it, in line with the Parties’ agreed authorship and acknowledgement practices (for example, the ICMJE recommendations on authorship, where applicable).

15. LIABILITY AND INDEMNITY

- 15.1** Each Party (the “Indemnifying Party”) shall indemnify and hold harmless the other Party against all losses, liabilities, fines, penalties, and reasonable costs (including reasonable legal fees) arising out of or in connection with: (a) a breach of this Agreement by the Indemnifying Party, its personnel, or its Sub-processors; or (b) a breach of Data Protection Legislation by the Indemnifying Party in connection with the Shared Data.
- 15.2** Nothing in this Agreement excludes or limits either Party’s liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be excluded or limited.
- 15.3** Subject to Section 15.2, neither Party shall be liable to the other for any indirect or consequential loss, or for loss of profits, revenue, contracts, anticipated savings, or goodwill, arising out of or in connection with this Agreement, whether arising in contract, tort (including negligence), or otherwise.

16. TERM AND TERMINATION

- 16.1** This Agreement takes effect on the Commencement Date and shall continue for (insert fixed term, e.g., three (3) years) / until terminated in accordance with this Section 16 (the “Term”), unless extended by written agreement of the Parties.

- 16.2** Either Party may terminate this Agreement for convenience by giving the other Party (thirty (30) / sixty (60)) days' prior written notice.
- 16.3** Either Party may terminate this Agreement with immediate effect by written notice if the other Party: (a) commits a material breach of this Agreement which, if capable of remedy, is not remedied within (thirty (30)) days of being notified of the breach; or (b) becomes insolvent, enters administration or liquidation, or ceases to carry on business.
- 16.4** On termination or expiry of this Agreement, each Party shall deal with the Shared Data in its possession or control in accordance with Section 9 (Data Retention and Disposal).
- 16.5** Sections 1 (Definitions), 7 (Confidentiality), 9 (Data Retention and Disposal), 14 (Publication and Intellectual Property, to the extent retained), 15 (Liability and Indemnity), 17 (Dispute Resolution), 18 (General Provisions), and 19 (Governing Law and Jurisdiction) shall survive termination or expiry of this Agreement, together with any other provision that by its nature is intended to survive.

17. DISPUTE RESOLUTION

- 17.1** If a dispute arises out of or in connection with this Agreement, the Parties' nominated representatives (Section "Nominated Representatives and Contacts") shall first attempt in good faith to resolve it through discussion within (ten (10)) Business Days of a written request from either Party.
- 17.2** If the dispute is not resolved under Section 17.1, it shall be escalated to a senior manager or director of each Party, who shall attempt to resolve it within a further (fourteen (14)) Business Days.
- 17.3** If the dispute remains unresolved, the Parties may agree to refer it to mediation before either Party commences formal legal proceedings, save that nothing in this Section 17 prevents either Party from seeking urgent injunctive or equivalent interim relief from a competent court at any time.

18. GENERAL PROVISIONS

- 18.1** Notices. Any notice given under this Agreement shall be in writing and delivered by hand, courier, or email to the address or email address specified in the "Nominated Representatives and Contacts" section (or such other address as a Party may notify to the other in writing), and shall be deemed received: if delivered by hand or courier, on delivery; and if sent by email, when sent, provided no delivery failure notification is received and a read receipt or reply is obtained.
- 18.2** Variation. This Agreement, including its Schedules, may be amended only by an instrument in writing signed by an authorized representative of each Party.
- 18.3** Assignment. Neither Party may assign, transfer, or subcontract any of its rights or obligations under this Agreement without the prior written consent of the other Party, save that a Party

may assign this Agreement to a successor entity in connection with a merger, reorganization, or sale of substantially all its relevant business, provided the assignee agrees in writing to be bound by this Agreement.

- 18.4** No partnership or agency. Nothing in this Agreement creates a partnership, joint venture, or relationship of principal and agent between the Parties, and neither Party has authority to bind the other.
- 18.5** Severability. If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect, and the Parties shall negotiate in good faith to replace the invalid provision with one that achieves, as closely as possible, its original intent.
- 18.6** Force majeure. Neither Party shall be liable for any failure or delay in performing its obligations (other than payment obligations) caused by circumstances beyond its reasonable control, provided the affected Party notifies the other Party promptly and uses reasonable efforts to mitigate the effect of those circumstances.
- 18.7** Entire agreement. This Agreement, including its Schedules, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior discussions, arrangements, and understandings between them relating to that subject matter.
- 18.8** Waiver. No failure or delay by a Party in exercising any right under this Agreement shall operate as a waiver of that right, and any waiver must be in writing and signed by the waiving Party to be effective.
- 18.9** Counterparts. This Agreement may be executed in any number of counterparts (including by electronic or digital signature), each of which is an original and all of which together constitute one agreement.
- 18.10** Third-party rights. Unless expressly stated, this Agreement does not create any right enforceable by any person who is not a Party to it.

19. GOVERNING LAW AND JURISDICTION

- 19.1** This Agreement, and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with it or its subject matter, shall be governed by and construed in accordance with the laws of (insert jurisdiction).
- 19.2** Each Party irrevocably submits to the (exclusive / non-exclusive) jurisdiction of the courts of (insert jurisdiction) to settle any dispute or claim arising out of or in connection with this Agreement.

SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Commencement Date.

SIGNED for and on behalf of (Organization A):

Signature: _____

Name: _____

Title: _____

Date: _____

SIGNED for and on behalf of (Organization B):

Signature: _____

Name: _____

Title: _____

Date: _____

ANNEX 1. DESCRIPTION OF THE SHARED DATA

Categories of Data Subjects	(e.g., patients, service users, research participants, employees)
Categories of Personal Data shared	(e.g., name, date of birth, contact details, unique identifiers, service/attendance records)
Special Category / Sensitive Data (if any)	(e.g., health data, HIV status — state “None” if not applicable)
Purpose of the sharing	(insert — must match Section 2)
Legal basis relied on by Party A (Article 6 / equivalent)	(insert)
Legal basis relied on by Party A for Special Category Data (Article 9 / equivalent), if applicable	(insert, or “Not applicable”)
Legal basis relied on by Party B (Article 6 / equivalent)	(insert)
Legal basis relied on by Party B for Special Category Data (Article 9 / equivalent), if applicable	(insert, or “Not applicable”)
Direction of the data flow	(e.g., Party A to Party B / Party B to Party A / bi-directional)
Method of transfer	(e.g., secure API, encrypted upload to shared platform, password-protected file via email with separately sent password)
Frequency / volume of transfer	(e.g., weekly batch of approximately n records; real-time; one-off transfer)
Format of the data	(e.g., structured database extract, CSV, PDF report)
Storage location(s)	(insert system(s)/location(s), including country)
Retention period	(insert period and the trigger point for the retention clock, e.g., end of Term, completion of Study)
Roles of the Parties (per Section 4)	(Independent Controllers / Controller: ____ and Processor: ____)
Data Protection contact – Party A	(Name, email, phone)
Data Protection contact – Party B	(Name, email, phone)
Personal Data Breach contact – Party A	(Name, 24-hour contact)
Personal Data Breach contact – Party B	(Name, 24-hour contact)

ANNEX 2. TECHNICAL AND ORGANISATIONAL SECURITY MEASURES

Each Party shall implement, at a minimum, the following measures in respect of the Shared Data. Both Parties should confirm, amend, or add to this list to reflect their actual controls before signature.

Access control

- Role-based access limited to personnel with a need to know for the Purpose.
- Unique user accounts and strong, unique passwords or passphrases; multi-factor authentication for remote or privileged access.
- Periodic review and prompt revocation of access on role change or termination of employment.

Encryption and secure transfer

- Encryption of Shared Data at rest on servers, databases, and mobile/portable devices.
- Encryption of Shared Data in transit (e.g., TLS, secure file transfer, VPN, or encrypted email) for any transmission outside the organization's network.
- No storage of Shared Data on unencrypted removable media (USB drives, external hard disks, etc.).

Device and network security

- Up-to-date anti-malware software on all devices used to Process the Shared Data.
- Firewalls and network segmentation appropriate to the sensitivity of the Shared Data.
- Patch management to keep operating systems and applications up to date.

Physical security

- Paper records containing Shared Data kept in locked cabinets or rooms with restricted access.
- Access-controlled premises for servers and physical storage of Shared Data.

Organizational measures

- Documented information security and data protection policies covering the Shared Data.
- Mandatory data protection and information security training for personnel with access to the Shared Data, refreshed periodically.
- Signed confidentiality undertakings from personnel and contractors with access to the Shared Data.
- A documented incident response plan covering detection, containment, notification, and recovery.

Resilience, testing, and disposal

- Regular backups of the Shared Data, with periodic testing of restoration procedures.
- Regular testing, assessment, and evaluation of the effectiveness of technical and organizational measures (e.g., vulnerability scanning, penetration testing, internal audit).
- Secure disposal procedures for the Shared Data and any media on which it is held, in accordance with Section 9 of this Agreement.

ANNEX 3. AUTHORIZED SUB-PROCESSORS / THIRD-PARTY RECIPIENTS

Name and registered address	Country	Purpose / processing activity	Data protection contact

ANNEX 4. DATA PROTECTION RESPONSIBILITIES MATRIX

This Annex summarizes, for ease of reference, how the Parties have allocated responsibility for key data protection obligations. It does not vary the substantive obligations set out in the body of this Agreement, which shall prevail in the event of any inconsistency.

Obligation	Allocation of responsibility
Lawful basis for processing	Each Party is responsible for identifying and documenting its own lawful basis (see Schedule 1).
Purpose limitation	Each Party will process the Shared Data only for the Purpose set out in Section 2 and Schedule 1.
Data minimization	Each Party will ensure the Shared Data it collects and shares is adequate, relevant, and limited to what is necessary for the Purpose.
Accuracy	Each Party is responsible for the accuracy of the Shared Data it supplies (see Section 6).
Storage limitation	Each Party is responsible for retention and secure disposal in line with its own policies and Section 9 / Schedule 1.
Transparency (privacy notices)	Each Party is responsible for its own privacy notice(s); (insert if one Party will issue a joint or lead notice).
Security of processing	Each Party is responsible for implementing the measures in Schedule 2 within its own organization.
Sub-processor / third-party engagement	Each Party will obtain the other's consent before engaging a new Sub-processor, where required under Section 13.
Personal Data Breach notification	Each Party will notify the other in accordance with Section 12 and will separately assess its own notification obligations to Regulatory Authorities and Data Subjects.
Data Subject rights requests	Each Party will handle requests relating to data it holds and will assist the other in accordance with Section 11.
Data protection impact assessments	Each Party is responsible for assessing whether a data protection impact assessment (or equivalent) is required for its own processing and will share relevant outputs with the other Party on request.
Records of processing	Each Party will maintain its own records of processing activities in respect of the Shared Data.

